

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUBC052042: MAGDALENO TRUCKING, INC. vs CASEY HOUWELING

09/22/2026 in Department 43

Demurrer by LONGVINE CALIFORNIA, INC.

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motions: Defendant Longvine California, Inc.'s Demurrer to First Amended Complaint

Tentative Ruling: Defendant Longvine California, Inc.'s Demurrer to First Amended Complaint on CCP §430.10 subd. (e) grounds is SUSTAINED, with leave to amend. The Demurrer on subd. (f) grounds is OVERRULED.

Plaintiff may file a Second Amended Complaint on or before September 9, 2026.

Moving party is ordered to serve notice of the Court's ruling.

DISCUSSION

The Court did not receive the report from counsel detailing counsels' meet and confer discuss, or a declaration responsive to the Order to Show Cause. These documents were due on September 11, 2026, as ordered by the Court on August 25, 2026. This noncompliance will be discussed at the hearing on the *Order to Show Cause re: Why the Court should not impose a monetary sanction*

against defense counsel, Darren Neilson, for not engaging in the meet and confer process required by Code of Civil Procedure § 430.41(a)(2).

1. Uncertainty - CCP §430.10 subd. (f)

Demurrers for uncertainty are disfavored and should only be sustained where the complaint is so bad that the demurring defendant cannot reasonably respond thereto. (See, e.g., *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) A demurrer for uncertainty is insufficient unless it specifies how the targeted pleading is uncertain. (See *Coons v. Thompson* (1946) 75 Cal.App.2d 687, 690; *Taliaferro v. Salyer* (1958) 162 Cal.App.2d 685, 688.) The general nature of the allegations in the First Amended Complaint is sufficiently clear to apprise Defendant of Plaintiff's claims. Any confusion regarding the details can be resolved in discovery.

2. Statute of Limitations - CCP §430.10 subd. (e)

“‘The defense of statute of limitations may be asserted by general demurrer if the complaint shows on its face that the statute bars the action.’ [Citations.] There is an important qualification, however: ‘In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.’ [Citations.]” (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315-1316.) In evaluating whether a claim is time-barred, the court must determine (1) which statute of limitations applies and (2) when the claim accrued. (*Id.* at p. 1316.)

Here, the First Amended Complaint (FAC) affirmatively pleads that the parties’ contract was breached beginning on or about October 28, 2021 when Defendant ceased making payments. On the face of the FAC that is the date of accrual. Because the applicable statute of limitations for every cause of action alleged in the FAC is, at most, four years, the naming of Defendant Longvine for the first time in the FAC filed on June 3, 2026, is untimely *unless* the allegations are able to relate back to the initial October 2, 2025, filing of the Complaint or there are facts supporting tolling or some other accrual date. The allegations supporting application of another accrual date are not contained in the FAC currently, and Plaintiff cannot rely on extrinsic evidence in the form of its President’s declaration to overcome the Demurrer. The arguments contained in the Opposition primarily rely on allegations not contained the FAC. The demurrer on grounds the claims are barred by the statute of limitations is sustained.

The Court grants leave to amend because Plaintiff has indicated that it is aware of facts that could cure the defects identified in the Demurrer.